

KARNATAKA ACT NO. 15 OF 2012
THE KARNATAKA STAMP (AMENDMENT) ACT, 2012
Arrangement of Sections

Sections:

1. Short title and commencement
2. Amendment of Schedule

STATEMENT OF OBJECTS AND REASONS

Amending Act 15 of 2012.- To give effect to the proposals made in the Budget Speech of 2012-13, it is considered necessary to amend the Karnataka Stamp Act, 1957 (Karnataka Act No. 34 of 1957). Certain consequential amendments have also been proposed.

Hence the Bill.

[L.A. Bill No. 10 of 2012, File No.Samvyashae 23 Shasana 2012]

[Entry 63 of List II of the Seventh Schedule to the Constitution of India.]

KARNATAKA ACT NO. 15 OF 2012

(First published in the Karnataka Gazette Extra-ordinary on the thirty-first day of March, 2012)

THE KARNATAKA STAMP (AMENDMENT) ACT, 2012

(Received the assent of the Governor on the thirty-first day of March, 2012)

An Act further to amend the Karnataka Stamp Act, 1957.

Whereas it is expedient further to amend the Karnataka Stamp Act, 1957 (Karnataka Act 34 of 1957), for the purposes hereinafter appearing;

Be it enacted by the Karnataka State Legislature in the sixty-third year of the Republic of India as follows:-

1. Short title and commencement.— (1) This Act may be called the Karnataka Stamp (Amendment) Act, 2012.

(2) It shall come into force with effect from the first day of April 2012.

2. Amendment of Schedule.— In the Karnataka Stamp Act, 1957 (Karnataka Act 34 of 1957), in the schedule,-

1. In article 5,

(a) after clause (e) and the entries relating thereto, the following shall be inserted, namely:-

“(f) If relating to construction or development of One Rupee for every one hundred an immovable property, including a multi-unit rupees or part thereof, on the market house or building or unit of apartment or flat or value of the property which is the portion of a multi-storied building by a subject matter of development in the developer or builder or promoter or by whatever agreement or on consideration, name called having a stipulation that, for such whichever is higher, subject to a construction or development, the property shall maximum of rupees fifteen lakhs”.

be held jointly by the developer or builder or promoter or by whatever name called and the owner or lessee, as the case may be, of such property, or that it shall be sold jointly by them or that a part of it shall be held jointly by them and the remaining part thereof shall be sold jointly by them.

(b)after clause (i-a) and the entries relating thereto, the following shall be inserted, namely,
“(ib) If relating to advertisement or telecasting or broadcasting of programs for promotion and development of business

One Rupee for every one thousand rupees or part there of on the amount or consideration in the agreement, but not less than Rupees two hundred.

(ic) If relating to assignment or transfer of intellectual property rights (i.e., patent rights, copy rights or trade marks rights.)

One Rupee for every one thousand rupees or part there of on the amount or consideration in the agreement, but not less than Rupees

(id) If relating to building Works or labour or services (works contracts)

two hundred.

(i) Where the amount or consideration in the agreement does not exceed Rupees ten lakhs

Rupees one hundred

(ii) where the amount or consideration in the agreement exceeds Rupees ten lakhs

Rupees One hundred and in addition Rupees One hundred for every Rupees ten lakhs or part thereof in excess of Rupees ten lakhs, subject to a maximum of Rupees five lakhs.”

(2) In article 6, for clause (2) and the entries relating there to, the following shall be substituted, namely.-

“(2) the pawn or pledge of moveable property, where such pawn or pledge has been made by way of security for the repayment of money advanced or to be advanced by way of loan or an existing or future debt.

if such loan or debt is repayable on demand

One rupee for every one thousand rupees or part thereof on the loan or debt amount, subject to a maximum of rupees fifty thousand.

Exemption: Instruments of pawn or pledge of goods or jewels wherein such loan or debt is upto Rupees one lakh”.

Provided that where a fresh instrument of pawn or pledge of movable property is executed for securing repayment of money already advanced by way of loan between the same parties and for the same purpose and for the same amount and the duty in respect of earlier instrument has been paid, then the duty chargeable on such fresh instrument is chargeable as per clause (j) of Article 5 of this Schedule.”

(3) In article 12,

(a) in clause (a), in the entries in column 3, for the words, “rupees five”, the words, “fifty paise”, shall be substituted,

(b) in clause (b), in the entries in column 3, for the words, “twenty five rupees”, the words, “two rupees and fifty paise”, shall be substituted,

(4) In article 20, in clause (1), in column 3, for the words, “six percent of the value”, the words, “five percent of the value”, shall be substituted.

(5) In article 23, in column 2, for the words, “**customs bond**”, the words, “**customs bond or excise bond**”, shall be substituted.

(6) In article 37, in clause (a),

(a) in column 2, for the words “ Goods or commodities”, the words, “Goods or commodities or currencies”, shall be substituted.

(b) in column 3, for the words “ Goods or commodities”, the words, “Goods or commodities or currencies”, shall be substituted.

(7) In article 40,-

(a) in clause **A**,-

- (i) In sub-clause (a), in column 2, for the words and figures, “rupees 5000”, the words, “rupees fifty thousand”, shall be substituted,
- (ii) In sub-clause (a), in column 3, for the words, “one hundred rupees,” the words, “five hundred rupees”, shall be substituted,
- (iii) In sub-clause (b), in column 3, for the words, “one thousand rupees,” the words, “two thousand rupees”, shall be substituted,

(b) in clause **B**, in sub-clause (b), in column 3, for the words, “five hundred rupees”, the words, “one thousand rupees”, shall be substituted.

(c) in clause **C**, in sub-clause (b), in column 3, for the words, “five hundred rupees”, the words, “one thousand rupees”, shall be substituted.

(8) In article 41, after clause (e) and the entries relating thereto, the following shall be inserted, namely,

“(ea) If relating to construction or development of an One Rupee for every one immovable property, including a multi-unit house or building or hundred rupees or part thereof, unit of apartment or flat or portion of a multi-storied building by on the market value of the a developer or builder or promoter or by whatever name called property which is the subject having a stipulation that, for such construction or development, matter of development in the the property shall be held jointly by the developer or builder or power of attorney or on promoter or by whatever name called and the owner or lessee, consideration, whichever is as the case may be, of such property, or that it shall be sold higher subject to a maximum of jointly by them or that a part of it shall be held jointly by them rupees fifteen lakhs”. and the remaining part thereof shall be sold jointly by them.

By Order and in the name of the Governor of Karnataka,

G.K. BOREGOWDA

Secretary to Government,

Department of Parliamentary Affairs and Legislation